

## 20TRCV00077 20TRCV00077

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-20

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Case Number: 20TRCV00077 Hearing Date: August 20, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Thursday, August 20, 2026

Calendar No.

PROCEEDINGS

Tony Taleff v. Marcia Lynn Sattgast Taleff, et al.

20TRCV00077

1.

Tony Taleff's

Motion for Leave to File Amended Complaint

2. Marcia Lynn Sattgast Taleff's Motion to Dismiss

TENTATIVE RULING

Tony Taleff's Motion for Leave to File Amended

Complaint is denied.

Marcia Lynn Sattgast Taleff's Motion to Dismiss is

granted.

## Background

Plaintiff filed the Complaint on January 22, 2020.

Plaintiff's First Amended Complaint was filed on February 24, 2022. Plaintiff's Second Amended Complaint was filed on October 6, 2023. Plaintiff's Third Amended Complaint was filed on April 11, 2025. Plaintiff alleges that during the course of the parties' dissolution of marriage proceeding, numerous instances of alleged wrongdoing were uncovered. The Third Amended Complaint includes the following causes of action: 1. Enforcement of Judgment; 2. Promissory Estoppel; 3-6. Conversion; 7. Financial Elder Abuse.

On December 9, 2025, Defendant's demurrer to the Third Amended Complaint was sustained without leave to amend, in part, and with 20 days leave to amend, in part. Plaintiff failed to file a Fourth Amended Complaint within the time allotted.

On March 11, 2026, Plaintiff's motion for leave to file a Fourth Amended Complaint was denied.

On June 12, 2026, Plaintiff filed another motion for leave to file a Fourth Amended Complaint.

## Motion for Leave to Amend

The court may, in furtherance of justice, and on such terms as may be proper, allow a party to amend any pleading. Code Civ. Proc., §§ 473 & 576. Judicial policy favors resolution of all disputed matters between the parties and, therefore, leave to amend is generally liberally granted. Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. However, the court does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. Cal. Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 281.

The application for leave to amend should be made as

soon as the need to amend is discovered.

The closer the trial date, the stronger the showing required for leave to amend. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the court has the discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490. Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.

Plaintiff moves for leave to amend to file a Fourth Amended Complaint. Plaintiff contends that he has now cured the previous deficiencies that led to the denial of Plaintiff's prior motion for leave to amend on March 11, 2026.

CCP § 1008(a) states: "When an application for an order has been made to a or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." In addition, the party seeking reconsideration must provide not just new or different facts, circumstance, or law, but a satisfactory explanation for the failure to produce it at an earlier time. See *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.

As noted above, Plaintiff's motion for leave to file a Fourth Amended Complaint was denied on March 11, 2026. The ruling to deny the motion was not made without prejudice. The Court did not allow Plaintiff to re-file this motion. In fact, the ruling specifically stated that it was clear that no further amendment would be able to cure Plaintiff's inability to state sufficient facts to state a cause of action. Thus, in order to attempt to move for leave to file a Fourth Amended Complaint again Plaintiff must comply with the requirements noted above to seek reconsideration of the Court's prior order.

The prior order was made on March 11, 2026. The instant motion was filed on June 12, 2026 more than three months past the hearing. However, there is no showing that Defendant provided written notice of the March 11, 2026, as the Court ordered Defendant to do, thus, the Court cannot deem the motion untimely under Section 1008(a). Had the motion been untimely, no further analysis would have been required.

No new law was presented with this motion. Instead, Plaintiff attempts to present new facts and circumstances. However, even here, the purported new facts or circumstances are not related to the issue of why the Court should reconsider the prior ruling, but, instead, appears to be an attempt to present evidence as to why Plaintiff believes his action is meritorious. In addition, most of the facts or circumstances are not new, but, instead, are facts and circumstances that have been present and known from the inception of and through the dispute between the parties. Finally, Plaintiff fails to show why any purported new or different facts or circumstances were not presented earlier in compliance with *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.

Defendant filed a written opposition stating that Plaintiff is relitigating claims that were already determined in Case Number BD497594. Defendant also states that Plaintiff has been declared a vexatious litigant in Case Number 37-2019-00051302-CU-PO-NC. Defendant also notes that this motion has already been heard and denied by the Court. Defendant also invokes CCP § 581(f) and argues that the action should be dismissed. The motion to dismiss will be heard in connection with this motion for leave to amend.

Therefore, Plaintiff's Motion for Leave to File Fourth Amended Complaint is denied.

Motion to Dismiss

Code Civ. Proc., § 581(f)(1) and (2) states: "The court may dismiss the complaint as to that defendant when: (1) Except where Section 597 applies, after a demurrer to the complaint is sustained without leave to amend and either party moves for dismissal. (2) Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal."

CCP § 597 applies to trials of defenses and is not applicable to this action.

"[P]laintiffs' failure to file an amended complaint within the time specified subjected their entire action to dismissal in the court's discretion under section 581, subdivision (f)(2)." *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613.

On December 9, 2025, Defendant's demurrer to the Third Amended Complaint was sustained without leave to amend, in part, and with 20 days leave to amend, in part. Plaintiff failed to file a Fourth Amended Complaint within the time allotted. On March 11, 2026, Plaintiff's motion for leave to file a Fourth Amended Complaint was denied. On June 12, 2026, Plaintiff filed another motion for leave to file a Fourth Amended Complaint. This current motion for leave to amend is being denied again on this date.

Therefore, the Court exercises its discretion to grant this motion and to dismiss this action with prejudice.

Defendant is ordered to give notice of this ruling.